

at the time of entrustment of the goods to the railway administration for carriage by railways;

provided that the railway administration shall be responsible for any such damage, deterioration, leakage or wastage if negligence or misconduct on the part of the railway administration or of any of its servants is proved.

Comments

Section 98 provided for the responsibility of railways in cases of consignment which are in defective condition or are defectively packed.

Proviso. – In *Abdul Jabar Butt v. Sate of Jammu and Kashmir*, it was held that a proviso must be considered with relation to the principle matter to which it stands as a proviso.

99. Responsibility of a railway administration after termination of transit. –

1. A railway administration shall be responsible as a bailee under secs. 151, 152, and 161 of the Indian Contract Act, 1872 (9 if 1872), for the loss, destruction, damage, deterioration or non-delivery of any consignment up to a period of seven days after the termination of transit;

Provided that where the consignment is at owner's risk rate, the railway administration shall not be responsible as a bailee for such loss, destruction, damage, deterioration or non-delivery except on proof of negligence or misconduct on the part of the railway administration or of any of its servants .

2) The railway administration shall not be responsible ;in any case for the loss, destruction, damage deterioration or non-delivery of any consignment arising after the expiry of a period of seven days after the termination of transit.

3) Notwithstanding anything contained in the foregoing provisions of this section, a railway administration shall not be responsible for the loss, destruction, damage, deterioration or non-delivery of perishable goods, animals explosives and such dangerous or other goods as may be prescribed, after the termination of transit.

4) Nothing in the foregoing provisions of this section shall affect the liability of any person to pay any demurrage or wharfage, as the case may be, for so long as the consignment is not unloaded from the railway wagons or removed from the railway premises.

100. Responsibility as carrier or luggage.